

TENTATIVE RULING

Clorinda Russo, by and through her Guardian Ad Litem Gina Mineo

v.

MV Transportation, Inc., et al.

26CV000879

Plaintiff's Motion for Relief from Waiver of Objections

Hearing Date: September 4, 2026

Plaintiff Clorinda Russo ("Plaintiff") seeks relief under Code of Civil Procedure¹ sections 2030.290 and 2031.300 because of a waiver of objections resulting from the late service of her responses to the first set of document requests and interrogatories (collectively, "Discovery") from Defendants MV Transportation, Inc. and Luis Pacheco (collectively, "Defendants"). In response, Defendants contend that Plaintiff's untimely Discovery responses — which were not due to mistake, inadvertence, or excusable neglect — constitute a waiver of all objections under section 2030.290, subdivision (a). After considering all supporting and opposing papers, the Court hereby **GRANTS** Plaintiff's motion.

Plaintiff admits that her Discovery responses were served six days late. [Gladin-Kramer Decl. at ¶¶ 2-3.] Generally, that would result in an automatic waiver of Plaintiff's objections, including those based on privilege and work-product protection. [Code Civ. Proc. §§ 2030.290, subd. (a), 2031.300, subd. (a).]

Now, Plaintiff seeks relief from that waiver. The court may grant such relief if the moving party satisfies two conjunctive conditions: (1) the party has subsequently served a response that is in substantial compliance with the statutory provisions governing interrogatory and document-request responses, and (2) the failure to serve a timely response was the result of mistake, inadvertence, or excusable neglect. [Code Civ. Proc. §§ 2030.290, subd. (a), 2031.300, subd. (a).]

The first prong, substantial compliance, focuses on whether Plaintiff's untimely responses substantively address the Discovery completely and straightforwardly, consistent with the form and content requirements of the Civil Discovery Act. [Code Civ. Proc. §§ 2030.210-2030.240, 2031.210-2031.240.] Here, Plaintiff demonstrated that she served extensive, verified Discovery responses, including the production of more than 4,000 pages of medical records. [Gladin-Kramer Decl. at ¶¶ 5-6 and Exhibits B-E.] In opposition, Defendants neither challenge nor raise the sufficiency of Plaintiff's Discovery responses. [See Opp., *passim*; Reply at 2.] Therefore, Plaintiff has satisfied the statutory requirement of substantial compliance.

The parties dispute the excusable-neglect prong, which requires a genuine, non-tactical explanation for the delay, including why no extension was sought. [*Zellerino v. Brown* (1991) 235 Cal.App.3d 1097, 1107; *Scottsdale Ins. Co. v. Superior Court* (1997) 59 Cal.App.4th 263,

¹ Hereinafter, all statutory references are to the Code of Civil Procedure.

275-276; *Mannino v. Superior Court* (1983) 142 Cal.App.3d 776, 779.] On the one hand, Plaintiff's counsel explains that her office "mistakenly calculated Plaintiff's response deadline using May 5, 2026 – the date Defendant served its own discovery responses – as the reference event, rather than April 29, 2026, the date Defendant served discovery on Plaintiff." [Gladin-Kramer Decl. at ¶ 3.] Counsel acknowledged the error within minutes of being notified, apologized, and served production by June 5 and written verified responses by June 9. [*Id.* at ¶¶ 4-5.] On the other hand, Defendants argue that the mistake was unreasonable because Plaintiff's counsel's office confirmed receipt of the discovery. [Opp. at 7.]

The Court finds that Plaintiff has offered a genuine, non-tactical explanation for the late service of her Discovery responses. Plaintiff's counsel's prompt corrective action and the nature of the clerical mix-up align with the longstanding liberal policy favoring decisions on the merits and granting relief when office errors lead to miscalendaring. [*Nilsson v. City of Los Angeles* (1967) 249 Cal.App.2d 976, 980 (calendaring error constitutes excusable neglect).] Further, there is no evidence of bad faith, tactical delay, or repeated neglect. Finally, although not required by statute, Defendants identify no cognizable prejudice from the short delay. Enforcing the waiver would yield no additional factual information and would serve only to compel disclosure of privileged material—an unduly harsh sanction for a one-week clerical delay.

Conclusion.

Because Plaintiff has served Discovery responses in substantial compliance, shown that the delay resulted from mistake or inadvertence, and because there is no prejudice and strong policy favors resolution on the merits, Plaintiff's motion for relief from waiver is **GRANTED**. Plaintiff shall prepare the Proposed Order consistent with this Tentative Ruling.

NOTE RE TENTATIVE RULING

This tentative ruling becomes the court's order, and no hearing shall be held unless one of the parties contests it by following Rule 3.1308 of the California Rules of Court and Monterey County Local Rule 7.9. Those parties wishing to present an oral argument must notify all other parties and the Court no later than 4:00 p.m. on the court day before the hearing; otherwise, **NO ORAL ARGUMENT WILL BE PERMITTED, AND THE TENTATIVE RULING WILL BECOME THE ORDER OF THE COURT AND THE HEARING VACATED.** You must notify the court by [email](#) or by calling the Calendar Department at 831-647-5800, extension 3040, before 4:00 p.m. on the court day before the hearing.